



CHAPTER 18.

An Act [to] establish organisation with a view to the provision of Employment or Assistance for Unemployed Workmen in proper cases. [11th August 1905.]

A.D. 1905.

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1)! For the purposes of this Act there shall be established, by order of the Local Government Board under this Act, a distress committee of the council of every metropolitan borough in London, consisting partly of members of the borough council and partly of members of the board of guardians of every poor law union wholly or partly within the borough and of persons experienced in the relief of distress, and a central body for the whole of the administrative county of London, consisting partly of members of, and selected by, the distress committees and of members of, and selected by, the London County Council, and partly of persons co-opted to be additional members of the body, and partly, if the order so provides, of persons nominated by the Local Government Board, but the number of the persons so co-opted and nominated shall not exceed one-fourth of the total number of the body, and every such order shall provide that one member at least of the committee or body established by the order shall be a woman.

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for London.

(2) The distress committee shall make themselves acquainted with the conditions of labour within their area, and when so required by the central body shall receive, inquire into, and discriminate between any applications made to them from persons unemployed:

Provided that a distress committee shall not entertain an application from any person unless they are satisfied that he has resided in London for such period, not being less than twelve months, immediately before the application, as the central body fix as a residential qualification.

(3) If the distress committee are satisfied that any such applicant is honestly desirous of obtaining work, but is temporarily unable to do so from exceptional causes over which he has no

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control, and consider that his case is capable of more suitable treatment under this Act than under the poor law, they may endeavour to obtain work for the applicant, or, if they think the case is one for treatment by the central body rather than by themselves, refer the case to the central body, but the distress committee shall have no power to provide, or contribute towards the provision of, work for any unemployed person.

(4) The central body shall superintend and, as far as possible, co-ordinate the action of the distress committees, and aid the efforts of those committees by establishing, taking over, or assisting labour exchanges and employment registers, and by the collection of information and otherwise as they think fit.

(5) The central body may, if they think fit, in any case of an unemployed person referred to them by a distress committee, assist that person by aiding the emigration or removal to another area of that person and any of his dependants, or by providing, or contributing towards the provision of, temporary work in such manner as they think best calculated to put him in a position to obtain regular work or other means of supporting himself.

(6) Any expenses of the central body under this Act, and such of the expenses of the distress committees under this Act as are incurred with the consent of the central body, shall be defrayed out of a central fund under the management of the central body, which shall be supplied by voluntary contributions given for the purpose, and by contributions made on the demand of the central body by the council of each metropolitan borough in proportion to the rateable value of the borough and paid as part of the expenses of the council:

Provided that—

(a) A separate account shall be kept of all sums supplied by contributions made by the councils of the metropolitan boroughs, and no expenses except—

(i) establishment charges of the central body and the distress committees, including the expenses incurred by them in respect of labour exchanges and employment registers and in the collection of information; and

(ii) the expenses incurred by the central body in aiding the emigration or removal to another area of an unemployed person and any of his dependants; and

(iii) the expenses incurred by the central body in relation to the acquisition, with the consent of the Local Government Board, of land for the purposes of this Act;

shall be paid out of that account.

(b) No such contribution by a council shall in any year exceed the amount which would be produced by a rate of one halfpenny in the pound calculated on the whole rateable value of the borough, or such higher rate, not exceeding one penny, as the Local Government Board may approve.

(7) The provision of temporary work or other assistance for any person under this Act shall not disentitle him to be registered or to vote as a parliamentary, county, or parochial elector, or as a burgess. A.D. 1905.

(8) This section shall apply to the City of London as if the City of London were a metropolitan borough, and the mayor, aldermen, and commons of the City of London in common council assembled were the council of the borough, and any contribution required for the purposes of this Act shall be paid out of the consolidated rate, but shall not be reckoned in calculating the amount of the rate for the purpose of any limit on that amount.

(9) The Local Government Board may, upon the application of the council of any borough or district adjoining or near to London, by order, extend the provisions of this section to that borough or district as if the borough or district were a metropolitan borough and were within the administrative county of London, and with such other modifications and adaptations as to the Board may appear necessary.

2.—(1) There shall be established by order of the Local Government Board for each municipal borough and urban district with a population, according to the last census for the time being, of not less than fifty thousand, and not being a borough or district to which the provisions of section one of this Act have been extended, a distress committee of the council for the purposes of this Act, with a similar constitution to that of a distress committee in London, and the distress committee so established shall, as regards their borough or district, have the same duties and powers, so far as applicable, as are given by this Act to the distress committees and central body in London. Organisation
outside Lon-
don.

This provision shall extend to any municipal borough or urban district with a population, according to the last census for the time being, of less than fifty thousand but not less than ten thousand, if the council of the borough or district make an application for the purpose to the Local Government Board, and the Board consent.

(2) Subject as aforesaid, the Local Government Board may, on the application of any county or borough or district council, or board of guardians, or, if they think it expedient, without any such application, by order establish for the purposes of this Act in any county or part of a county a central body and distress committees with similar constitutions to those of the central body and distress committees in London, and the body and committees so established shall, subject to any exceptions made by the order, have the same duties and powers as respects their area as are given by this Act to the central body and distress committees respectively in London.

For the purposes of this provision a county borough with a population of less than fifty thousand shall be deemed to be included in the county in which it is, for the purposes of the Local Government Act, 1888, deemed to be situated. 51 & 52 Vict.
c. 41.

(3) Where a central body and distress committees have not been established under this Act for the whole of a county, the council of

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that county, and, where a distress committee has not been established under this Act for a county borough, the council of that county borough, shall constitute a special committee under this Act, consisting of members of the council, with power to co-opt any persons to be additional members of the committee; but the number of persons so co-opted shall not exceed one-fourth of the total number of the committee.

It shall be the duty of the council, in such a case, through the special committee, to collect information with respect to the conditions of labour within their area by establishing, taking over, or assisting labour exchanges and employment registers, and in such other manner as they think fit, and to supply any such information when required.

Any expenses incurred by a council under this provision shall be paid in the case of a county council out of the county fund as expenses for special or general county purposes, as the circumstances may require, and in the case of a borough council out of the borough fund or borough rate.

(4) Where any order is made under this section as respects any area, the provisions of this Act relating to London shall apply with respect to that area, with such necessary modifications and adaptations as may be made by the order.

Temporary provision pending establishment of proper organisation.

3. Where at any time a central body and distress committees or a distress committee are about to be established for any area under this Act, any body already established in that area, whether before or after the passing of this Act, for the purpose of dealing with the unemployed, and any special committee under this Act, may, if the Local Government Board think fit, be temporarily constituted by order of that Board a central body or a distress committee, as the case may be, until the establishment in accordance with this Act of a central body and distress committees or of a distress committee for that area.

Local Government Board orders and regulations.

4.—(1) An order of the Local Government Board under this Act establishing a central body or distress committee may provide for the constitution and proceedings of that body or committee, and, in the case of an order establishing a central body, for the incorporation of that body by an appropriate name, and, where any property or liabilities are taken over from any other body, for effecting by virtue of the order the transfer of that property or those liabilities, and also for any matter for which provision may be made by regulations under this Act, and for which it appears desirable to make special provision affecting only the body or committee established by the order.

(2) An order of the Local Government Board under this Act may be varied and revoked by any subsequent order of the Board made under this Act.

(3) The Local Government Board may make regulations for carrying into effect this Act, and may by those regulations, amongst other things, provide—

(a) for regulating, subject to the provisions of this Act, the conditions under which any application may be enter-

- tained by a distress committee under this Act, and the conditions under which a central body may aid emigration or removal, or provide or contribute towards the provision of work under this Act, and otherwise for regulating the manner in which any duties under this Act are to be performed or powers exercised by any central body or distress committee or special committee under this Act; and
- (b) for authorising the establishment, with the consent of the Local Government Board, of farm colonies by a central body established under this Act, and the provision, with the like consent, by such a body of temporary accommodation for persons for whom work upon the land is provided; and
 - (c) for authorising and regulating the acquisition by a central body of land by agreement for the purposes of this Act, and the disposal of any land so acquired; and
 - (d) for the employment of officers and provision of offices, and for enabling any inspector of the Local Government Board to attend the meeting of any body or committee established under this Act; and
 - (e) for authorising the acceptance of any money or property by a central body established under this Act, and for regulating the administration of any money or property so acquired; and
 - (f) for the payment of any receipts of a central body to the central fund, and for the apportionment, if necessary, of those receipts between the voluntary contribution account and the rate contribution account of that fund; and
 - (g) for the audit of the accounts of any central body established under this Act in the same manner and subject to the same provisions as to any matters incidental to the audit or consequential thereon as the accounts of a county council; and
 - (h) for enforcing the payment of contributions by any councils liable to make such contributions in pursuance of this Act, and for authorising and regulating the borrowing of money by a central body established under this Act; and
 - (i) for facilitating the co operation of any body or committee having powers under this Act for any area with any other body or committee, or with any local authority, and the provision of assistance by one such body or committee to another; and
 - (k) for applying, with the necessary adaptations, to a distress committee having the powers of a central body regulations relating to a central body; and
 - (l) for the holding of local inquiries by the Local Government Board for the purposes of this Act, and for requiring returns to be made to the Board by any body or committee having powers under this Act; and

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- (m) for the application for the purposes of this Act, as respects any matters to be dealt with by the regulations, of any provision in any Act of Parliament dealing with the like matters, with any necessary modifications or adaptations.

All regulations made under this Act shall be laid as soon as may be before Parliament.

Application to
Scotland.

5. In the application of this Act to Scotland—

- (1) "The Local Government Board for Scotland" shall be substituted for "the Local Government Board":
- (2) "Royal, parliamentary, or police burgh" shall be substituted for "municipal borough and urban district" and for "borough or district":
- (3) "Parish" shall be substituted for "poor law union," "parish council" shall be substituted for "board of guardians," and "town council" shall be substituted for "council of the borough or district" and for "borough or district council":
- (4) "Royal, parliamentary, or police burgh with a population, according to the last census for the time being, of less than fifty thousand, but not less than twenty thousand," shall be substituted for "county borough":
- (5) References to special county purposes shall not apply:
- (6) "Burgh general improvement assessment" or any other assessment leviable in equal proportions on owners and occupiers shall be substituted for "borough fund or borough rate": Provided that any rate under this Act shall not be reckoned in calculating the amount of such assessment for the purpose of any statutory limit on such assessment:
- (7) "Inspector" shall include general superintendent and visiting officer:
- (8) Sections forty-seven, fifty-two, and fifty-three of the Local Government (Scotland) Act, 1894, shall be substituted for sections eighty-five, eighty-six, and eighty-eight of the Local Government Act, 1894:
- (9) "Municipal elector" shall be substituted for "burgess":
- (10) Subsection three of section two of this Act shall not apply to any county or to any burgh except with the consent of the Local Government Board for Scotland expressed by order made on the application of the county council or town council, as the case may be.

57 & 58 Vict.
c. 58.

56 & 57 Vict.
c. 73.

Application to
Ireland.

6. In the application of this Act to Ireland—

- (1) "The Local Government Board for Ireland" shall be substituted for "the Local Government Board":
- (2) As respects population, "ten thousand" shall be substituted for "fifty thousand," and "five thousand" for "ten thousand":

- (3) The provisions of this Act relating to the inclusion of a county borough in a county shall not apply : A.D. 1905.
- (4) Subsection three of section two of this Act shall not apply to any county in Ireland, except by order of the Local Government Board for Ireland made on the application of the council of that county :
- (5) Articles forty, forty-three, and forty-five of the schedule to the Local Government (Application of Enactments) Order, 1898, shall be substituted for sections eighty-five, eighty-six, and eighty-eight respectively of the Local Government Act, 1894. 56 & 57 Vict.
c. 72.

7. This Act may be cited as the Unemployed Workmen Act, Short title.
1905.

8. This Act shall continue in force for three years from the date of the passing thereof, and no longer, unless Parliament otherwise determine, and at the expiration of that period, unless this Act is so continued as aforesaid, the Local Government Board shall make such orders as they think necessary for dissolving the central bodies and distress committees established under this Act, and transferring their property and liabilities; and for the purposes of such transfer sections eighty-five, eighty-six, and eighty-eight of the Local Government Act, 1894 (which relate to current rates, existing securities and debts, and pending contracts, &c.), shall apply, with such modifications and adaptations as may be made by order of the Local Government Board. Duration of
Act.

56 & 57 Vict.
c. 72.

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FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.